4988

Executive Order

FOR THE

GOVERNMENT OF COROZAL HOSPITAL

By virtue of the authority vested in me I hereby establish the following order for the Canal Zone governing Corozal Hospital, amending the Executive Order promulgated May 10, 1911, to read as follows:

Sec. 1. The Panama Canal asylum for the insane shall be at Corozal Hospital, under the jurisdiction of the Health Department. Its object shall be the shelter and curative treatment of the insane.

Sec. 2. The Superintendent of Corozal Hospital shall be the administrative chief of the asylum, subject to existing laws and orders and to such rules and regulations as may be issued by the Health Department in accordance with existing laws and orders. He shall have the supervision over the professional and administrative personnel of the asylum and over the inmates, and he shall satisfy himself that all patients receive the care and medical treatment which are best adapted to their comfort and recovery.

He shall see that a proper register of each patient is kept, showing name, previous residence, occupation, origin and antecedents, and condition at the time of admission; and he shall keep a record of their mental and physical condition, as well as the medical treatment they receive during the time of their stay in the asylum. The death or discharge of patients shall be entered in the register.

Sec. 3. No person declared to be insane shall be kept in jail, prison, hospital for the sick, or other similar institution, except on written authority of the Superintendent of Corozal Hospital, which authority shall state the reason therefor.

Sec. 4. Except as provided for in sections 14 and 15, no person shall be admitted as a patient in the asylum for the insane except upon the order of the District Judge of the Canal Zone, provided that if a patient is in a state of violent insanity he may be admitted at once by the Superintendent of Corozal Hospital, without an order from the Court, into the quarters provided for the observation of persons alleged to be insane, upon the written request of any physician employed by the United States Government; or such patient may be admitted to the observation quarters by said Superintendent upon his own authority.

It shall be the duty of the Superintendent of Corozal Hospital to file a written report with the Clerk of the District Court within twenty-four hours after the patient has been admitted to the observation quarters, which report shall set out the name, age, and physical condition of patient, together with name of physician attending patient at time of admittance, and as soon as the clerk shall have received the report, he shall enter it upon the docket and the District Judge shall proceed to examine and determine the case in like manner as if the petition had been presented to him prior to the patient's admission into observation quarters.

Sec. 5. To obtain the judicial order provided for in the preceding section, it shall be necessary for the nearest relative of the person alleged to be insane to present a petition, duly subscribed and sworn to by the petitioner, to the Judge of the District Court of the Canal Zone, which petition shall state the sex, age, and nationality of patient, if known, and the facts showing patient's mental infirmity, and, if possible, the history of the case and the form of insanity with which he is suffering and the attending circumstances making it necessary that he be confined in the asylum. The petition shall be accompanied by a certificate signed by one or more reputable physicians to the effect that such person is insane.

When the nearest relatives of the person alleged to be insane are absent or refuse to act, the petition may be made by any person residing within the Canal Zone, and in that event the petitioner shall state that the nearest relatives of the patient are absent or refuse to act.

Sec. 6. The petition provided for in the preceding section shall take precedence over all other matters pending before the court and shall be heard by the Judge thereof without delay, and if the facts stated therein are sufficient to satisfy him of the insanity of the person sought to be confined, he shall issue orders at once directing that the person alleged to be insane be taken in custody for observation.

Sec. 7. The order of the Judge directing that the person alleged to be insane be placed under observation shall be sufficient authority for the Superintendent of Corozal Hospital to admit the patient into the asylum for the purpose of observation, there to remain until the observation is concluded; and the Judge shall direct in said order that, if the observation shall show that the patient is not insane, he shall be set at liberty at once, and the Superintendent of Corozal Hospital shall forthwith report his action thereon to the Judge who issued the order.

The observation of the alleged insane person shall be made in suitable quarters within the asylum grounds by the Superintendent of Corozal Hospital, or under his direction, and shall be for a period of not more than thirty days, and the Judge who issues the order for the detention of the patient shall require the Superintendent to make reports thereon.

It shall be the duty of the physician in charge of the observation to examine the patient and observe the symptoms of the case. Within thirty days after the patient is placed under observation, the Superintendent shall make a report in writing, stating whether the patient is sane or insane; the report shall contain a statement of the facts upon which the opinion is based, and shall be immediately filed with the clerk of the court.

Sec. 8. It shall be the duty of the Court to render final judgment therein, either committing the patient to the asylum, or ordering his discharge, or directing that he be turned over to his relatives who are able and willing to take care of him.

Sec. 9. The relatives of the person alleged to be insane, or the District Attorney, may appear and contest the report of the Superintendent, and in such cases the Judge shall hear the evidence presented by the parties and render judgment thereon, as provided in section eight.

Sec. 10. Any person interested in an inmate of the asylum, who believes such inmate is improperly detained therein, may make application to the District Judge for the discharge of such patient. Upon receipt of such application the Judge shall issue an order to the Superintendent, Corozal Hospital, to make a report on the patient's condition, and upon the receipt of such report shall consider the case, and, in his discretion, may grant or deny the application. The Judge may cause the patient to be examined by two competent physicians who shall report in writing as to the condition of the patient.

Sec. 11. A patient serving a sentence for the violation of the criminal laws of the Canal Zone shall be discharged from the Hospital upon the order of the District Court. All other patients may be discharged by the Superintendent. He shall file with the clerk of the court a written statement that in his judgment such patient has recovered, or that the discharge will not be detrimental or dangerous to the public welfare or injurious to the patient, provided that before discharging any patient who has not recovered, the Superintendent shall satisfy himself by adequate investigation that the relatives or friends of the patient are able and willing to receive and care for such patient.

No patient shall be discharged from the Hospital without suitable clothing.

Sec. 12. If any person confined in a prison or penitentiary under the sentence of a court becomes insane, he shall be committed to the asylum for the insane by the Judge of the District Court. In all such cases the provisions of this order

relating to the period of observation of the patient and the trial of the issue as to his insanity shall be observed. Whenever a person is committed to the insane asylum under the provisions of this section, the order of commitment issued by the court shall include a statement of the offense of which the person was convicted, the term of his imprisonment and the date upon which said term is to expire. Should such person be discharged from the insane asylum before the date of the expiration of his term of imprisonment, he shall be returned to the penal institution from which he was taken.

Sec. 13. Nothing contained in this order shall be construed to repeal or modify the provisions of the Code of Criminal Procedure of the Canal Zone relating to the inquiry into the insanity of the defendants before trial or after conviction.

Sec. 14. Insane patients from the Republic of Panama may be admitted into the asylum for the insane in accordance with the existing agreements between the Canal Zone authorities and the Panaman authorities, or under such changes and modifications of said agreement as may be made from time to time.

Sec. 15. The Superintendent of Corozal Hospital is authorized to receive as patients, members of the Army, Navy, and Marine Corps, for observation and care pending their transfer to the United States, upon the order of the Commanding General of the Panama Canal Department, United States Army, or the Commandant of the 15th Naval District of the United States Navy, or other competent naval authority in the case of naval vessels in Canal Zone waters which are not under the jurisdiction of the 15th Naval District.

Sec. 16. The Governor of The Panama Canal is hereby authorized to make rules and regulations necessary for the carrying out of the provisions of this order.

Sec. 17. This order shall take effect thirty days from this date.

CALVIN COOLIDGE

THE WHITE HOUSE,
November 3, 1928.

[No. 4988]

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